

REQUEST FOR QUOTATIONS <i>(THIS IS NOT AN ORDER)</i>		THIS RFQ ☐ IS ☒ IS NOT A SMALL BUSINESS- SMALL PURCHASE SET-ASIDE (52.219-4)			PAGE 1	OF 1	PAGES 35
1. REQUEST NO. 19VM3026Q0019	2. DATE ISSUED April 22, 2026	3. REQUISITION/PURCHASE REQUEST NO. PR15954027	4. CERT. FOR NAT. DEF. UNDER BDSA REG. 2 AND/OR DMS REG. 1		RATING		
5A. ISSUED BY General Services Office, American Embassy Hanoi, 7 Lang Ha, Hanoi, Vietnam			6. DELIVER BY <i>(Date)</i> May 20, 2026; 17:00PM local time				
5B. FOR INFORMATION CALL: <i>(Name and telephone no.) (No collect calls)</i> NAME Trang Bui			TELEPHONE NUMBER AREA CODE +84 24		7. DELIVERY ☒ FOB DESTINATION ☐ OTHER <i>(See Schedule)</i>		
8. TO:			9. DESTINATION				
a. NAME		b. COMPANY		a. NAME OF CONSIGNEE American Embassy Hanoi			
c. STREET ADDRESS				b. STREET ADDRESS 7 Lang Ha			
d. CITY		e. STATE		f. ZIP CODE		c. CITY Hanoi	
						d. STATE Vietnam	e. ZIP CODE
10. PLEASE FURNISH QUOTATIONS TO THE ISSUING OFFICE IN BLOCK 5A ON OR BEFORE CLOSE OF BUSINESS <i>(Date)</i> May 20, 2026 local time		IMPORTANT: This is a request for information, and quotations furnished are not offers. If you are unable to quote, please so indicate on this form and return it to the address in Block 5A. This request does not commit the Government to pay any costs incurred in the preparation of the submission of this quotation or to contract for supplies or services. Supplies are of domestic origin unless otherwise indicated by quoter. Any representations and/or certifications attached to this Request for Quotations must be completed by the quoter					
11. SCHEDULE <i>(Include applicable Federal, State and local taxes)</i>							
ITEM NO. (a)	SUPPLIES/SERVICES (b)		QUANTITY (c)	UNIT (d)	UNIT PRICE (e)	AMOUNT (f)	
1	Internet Leased Line Services for the U.S. Embassy Hanoi. Period of Performance: Jul 01, 2026 – Jun 30, 2027. (Please see following pages for details)		1	All			
12 DISCOUNT FOR PROMPT PAYMENT		a. 10 CALENDAR DAYS %	b. 20 CALENDAR DAYS %	c. 30 CALENDAR DAYS %		d. CALENDAR DAYS NUMBER %	
NOTE: Additional provisions and representations ☒ are ☐ are not attached.							
13 NAME AND ADDRESS OF QUOTER			14 SIGNATURE OF PERSON AUTHORIZED TO SIGN QUOTATION		15 DATE OF QUOTATION		
a. NAME OF QUOTER							
b. STREET ADDRESS			16. SIGNER				
c. COUNTY			a. NAME (Type or print)			b. TELEPHONE	
d. CITY	e. STATE	f. ZIP CODE	c. TITLE (Type or print)			AREA CODE	
						NUMBER	

STANDARD FORM 18

STATEMENT OF WORK

Internet Leased Line Services for the U.S. Embassy Hanoi, Vietnam

July 01, 2026 – June 30, 2027

I. GENERAL REQUIREMENTS AND PRICING:

The purpose of this firm fixed price purchase order is to obtain VPN, Internet Services, and Circuitry for the U.S. Embassy Hanoi, Vietnam for the period July 01, 2026 – June 30, 2027.

The local Telecommunication's Internet Service Provider (ISP) contracting firm must provide internet services and dedicated leased line channels and circuitry for connecting the U.S. Embassy Hanoi and associated annex locations specified below in this technical paper.

The Contractor shall complete all work, including furnishing all labor, material, equipment, and services, unless otherwise specified herein, required under this contract for stated services within the time specified herein. The price listed below shall include all labor, materials, overhead, and profit. The Contractor shall furnish all engineering, labor, tools, switches, routers, equipment, materials, supplies and services to provide the required circuit as specified in the schedule.

In consideration of satisfactory performance of the services required under this contract, the Contractor shall be paid a firm fixed-price (FFP) per month as stated in the schedule below in Vietnam Dong (VND) (continuation of SF 18 - block 11; bidders to complete).

VALUE ADDED TAX. Value Added Tax (VAT) is not included in the CLIN rates. Instead, it will be priced as a separate Line Item in the contract and on Invoices. Local law dictates the portion of the contract price that is subject to VAT; this percentage is multiplied only against that portion. It is reflected for each performance period. The portions of the solicitation subject to VAT are:

Line Item	Description of Services	Number of Months	Monthly Price (VND)	Total Firm-Fixed Price (VND)
1	Point-to-Point Leased Line - Installation between physical addresses: i. 7 Lang Ha, Ba Dinh, Ha Noi, Vietnam ii. 2 Ngo Quyen, Ha Noi, Vietnam • MPLS Layer 2 • Two isolated VLANs, presented on separate RJ-45 connections • Shared Bandwidth: 100 Mbps • Fiber Optic Leased Line	12		

*2a	Internet Leased Line: • Installation address: 7 Lang Ha, Ba Dinh, Ha Noi, Vietnam • Internet Bandwidth: 24 Mbps, • Dedicated, International • Fiber Optic • Subnet: /28 subnet, static Public IP addresses for VPN equipment, "always on", NO Network Address Translation, permit all IP protocols (including but not limited to UDP, TCP, and IPSEC) to transit without filters or proxies. Unfiltered access to the Internet is required without ISP firewall blocking. Must permit ping and trace route traffic from 169.252.0.0/16 and 169.253.0.0/16 to the ISP connection.	12		
*2b	Internet Leased Line: • Installation address: 7 Lang Ha, Ba Dinh, Ha Noi, Vietnam • Internet Bandwidth: 50 Mbps, • Dedicated, International • Fiber Optic • Subnet: /28 subnet, static Public IP addresses for VPN equipment, "always on", NO Network Address Translation, permit all IP protocols (including but not limited to UDP, TCP, and IPSEC) to transit without filters or proxies. Unfiltered access to the Internet is required without ISP firewall blocking. Must permit ping and trace route traffic from 169.252.0.0/16 and 169.253.0.0/16 to the ISP connection.			
*2c	Internet Leased Line: • Installation address: 7 Lang Ha, Ba Dinh, Ha Noi, Vietnam • Internet Bandwidth: 100 Mbps, • Dedicated, International • Fiber Optic • Subnet: /28 subnet, static Public IP addresses for VPN equipment, "always			

	on", NO Network Address Translation, permit all IP protocols (including but not limited to UDP, TCP, and IPSEC) to transit without filters or proxies. Unfiltered access to the Internet is required without ISP firewall blocking. Must permit ping and trace route traffic from 169.252.0.0/16 and 169.253.0.0/16 to the ISP connection.			
3	Internet Leased Line: • Installation address: 7 Lang Ha, Ba Dinh, Ha Noi, Vietnam • Internet Bandwidth: 150 Mbps, Dedicated, International • Fiber Optic • Subnet: /28 subnet, static Public IP addresses for VPN equipment, "always on", NO Network Address Translation, permit all IP protocols (including but not limited to UDP, TCP, and IPSEC) to transit without filters or proxies. Unfiltered access to the Internet is required without ISP firewall blocking. Must permit ping and trace route traffic from 169.252.0.0/16 and 169.253.0.0/16 to the ISP connection.	12		
4	Point-to-Point Direct Fiber (Metronet) - Installation between physical addresses: 7 Lang Ha, Ba Dinh, Ha Noi, Vietnam 170 Ngoc Khanh, Ba Dinh, Ha Noi, Vietnam • Fiber Optic, Six Pair • Direct Point-to-Point	12		
5	Point-to-Point Leased Line - Installation between physical addresses: 7 Lang Ha, Ba Dinh, Ha Noi, Vietnam 324 Nguyen Trai, Thanh Xuan, Ha Noi, Vietnam • MPLS Layer 2 • Two isolated VLANs, presented on separate RJ-45 connections • Shared Bandwidth: 50 Mbps • Fiber Optic Leased Line	12		

6	Internet: • Installation address: 18 Tong Dan • Internet Bandwidth: 2 Mbps, Dedicated, International (free upgradeable to 50 Mbps) • Fiber Optic	12		
Sub Total			2a	
			2b	
			2c	
VAT % (if applicable)			2a	
			2b	
			2c	
Grand Total (including VAT)			2a	
			2b	
			2c	

***Note to Offeror: Please provide prices for 3 options of CLIN 2 as a, b and c and the scalable grand total prices accordingly. The Embassy will select the option for contract award according to actual requirements at the award time.**

II. SCOPE OF WORK

The purpose of this firm fixed price purchase order is to obtain VPN, Internet Services, and Circuitry for the U.S. Embassy Hanoi, Vietnam.

The local Telecommunication's Internet Service Provider (ISP) contracting firm must provide internet services and dedicated leased line channels and circuitry for connecting American Embassy Hanoi and remote Embassy annex locations data links as shown above in the pricing table.

Backup Resiliency and Load Balancing: Contractor must provide a physical/logical backup and load balancing solution for all Internet and Point-to-Point connections if more than 10 Mbps.

It is especially mandatory that the Contractor shall provide Internet Protocol Version 6 (IPv6) compliant products and standards for all Internet Protocol (IP) devices.

II.1. All provided Internet Services and data point-to-point connections must comply with the following requirements (except when specified):

Internet Services Quality

Internet Service Provider (ISP) must provide dedicated leased channel high-speed access to the Internet. Twenty-four (24) hours uplink. Post Internet Service Provider (ISP) connection must be "always on" and must not require the installation of any custom software on the client side.

For Internet Services the Internet Service Provider (ISP) must guarantee full contracted bandwidth availability 24X7X365 from the originator side to the ISP's internet gateway. Bandwidth sharing between other non-Embassy customers is not allowed. Connection Ratio must be 1/1.

The internet circuit shall be high-end, professional grade service that differs from the residential, dial up service. NT requires dedicated (not shared or bundled) Internet Bandwidth, 24/7, "always-on" with unlimited usage. Fiber optic, terrestrial connectivity is preferred. The local ISP access circuit to the Post must meet the following specifications/requirements for connectivity.

The ISP must provide:

1. A /28 subnet static Public IP addresses for VPN equipment, network mask, and default gateway IP address.
2. ISP interface connectors: LC fiber connector (MM-multimode) – Gigabit interface
3. ISP availability: "Always on"
4. ISP connection: IPs must NOT repeat NOT use Network Address Translation (NAT).
5. ISP must permit all IP protocols (including but not limited to ICMP, UDP, TCP, and IPSEC) to transit without filters or proxies. Unfiltered access to the Internet is required without ISP firewall blocking or stateful inspection.
6. ISP must permit installation of Customer VPN encryption devices on circuit.
7. ISP must permit ping and trace route traffic from 169.252.0.0/16 and 169.253.0.0/16 to the ISP connection (LC fiber Gigabit MM router interface which terminates Customer VPN encryption device).
8. High quality performance, with minimum Service Level Agreement (SLA) of:
 - a. Packet Loss <=.2%
 - b. Availability of 99.9%.

Internet Service Provider (ISP) shall provide a Round Trip Time (RTT) report that provides the total time in milliseconds (ms) to send a small data packet and obtain a reply back for local data

services (for instance: point-to-point channels or web pages accessed through the Vietnam Network Access Point (NAP).

Average RTT from the customer's router must be faster than the stated times to the following destinations:

Destination	IP Address	Maximum Average RTT
Beltsville, MD, USA	169.252.1.30	230 ms
Beltsville, MD, USA	12.117.190.90	230 ms
Denver, CO, USA	169.253. 191.242	220 ms
Denver, CO, USA	12.27.144.74	220 ms
Tokyo, Japan	202.12.247.49	75 ms
Tokyo, Japan	180.131.255.193	75 ms
Singapore	202.55.89.97	55 ms
Singapore	203.127.29.129	55 ms
Ho Chi Minh City	101.53.12.7	25 ms
Ho Chi Minh City	14.238.90.179	25 ms

Network Health Monitoring and Corrective Controls

ISP will proactively monitor latency from the ISP connection to destinations in the table above and make corrections to the embassy's leased lines when needed to ensure RTT latencies are at or below those shown.

ISP will similarly monitor packet loss to the destinations listed and make immediate corrections when packet loss exceeds the limits specified in point #8 of the requirements above.

ISP shall provide a secure web-based customer dashboard to provide real-time monitoring of bandwidth utilization and overall health of all internet leased lines.

Network Devices

The network devices shall comply with the following characteristics:

Must not have ZTE, Huawei, Xiaomi and affiliated branded products in use on the internet connection. The Embassy may not enter into contract (or extend or renew contract) with an entity that uses above mentioned equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

Service Support and Contingencies

ISP must warrant service support 7X24X365.

ISP must warrant service support on site if necessary 7X24X365, services must be coordinated directly with Embassy's Contracting Office Representative (COR) or Information Technology (IT) representative from the Embassy Information Systems Center (ISC).

ISP should have direct connection capability with major United States of America (U.S.A) telecommunication providers (ISPs) at Internet tier 1 level, having alternative line channels or backups in case of main Internet path malfunctioning, if local conditions permit.

ISP must provide a central Information Technology (IT) point of contact (POC) in order to promptly coordinate technical issues during the initial installation process.

II.2. Other Technical Requirements:

- A. The Department of State has a requirement for one full period, full duplex internet line capable of supporting synchronous traffic at the required speed/bandwidth per each CLIN , delivered to the U.S. Embassy's demarcation point. The internet line shall be completely transparent to the required data speed/bandwidth, with no bits added to or deleted from the bit stream provided to the interface of the Department of State equipment.

The Department of State has a requirement for one full period, full duplex, clear channels, digital circuits and Internet leased lines capable of supporting synchronous traffic. For clear channel circuits, they shall be completely transparent, with no bits added to or deleted from the bit stream provided to the interface of the Department of State equipment.

- B. This digital service shall be via optic fiber. The service shall be for the exclusive use of the Department of State, 24-hours per day, 7 days per week, and 52 weeks per year.
- C. The Contractor shall coordinate the service and shall be responsible for the technical sufficiency of the circuit, including services necessary to establish, operate, and restore the circuit. Except for modems and terminal equipment furnished by the Government, the Contractor shall provide all equipment, materials, and supplies required to provide the service which includes the Data Service Unit (DSU) configured with Data Communications Equipment (DCE) interface. If required, signal element timing shall be provided by the Contractor's facility.
- D. The Contractor shall provide sufficient technical support to ensure uninterrupted end-to-end service between such terminal points as are covered in this contract. The Contractor shall provide, properly adjust, and maintain the circuit for continuous Department of State use. The Contractor shall ensure that the circuit complies with service changes, additions, or deletions as required under this contract.
- E. Services. This is a firm fixed-price contract for the lease of one full period, full duplex, clear channel, digital circuit capable of supporting synchronous traffic. The circuit shall be

completely transparent to the agreed upon data speed as required in pricing table CLINs, with no bits added to or deleted from the bit stream provided to the interface of the Department of State equipment.

- F. Inspection and Acceptance. Unless specified in the Contract, the Government shall require a period not to exceed 24 hours in order to perform testing to determine acceptance of the required circuit under Section C. The U.S. destination point or the U.S. foreign post shall conduct the testing.
- G. Term of Contract: The required circuits shall be installed and delivered to the Destination Point on or before 60 Days after Contract Award. Upon successful installation and acceptance by the Government of the required circuits, the Contractor shall be provided, in writing, notice to proceed and shall provide contractual services for a twelve (12) month period, commencing on the date specified in the notice to proceed.
- H. The Contractor agrees that the work and services set forth in this contract shall be performed during the period commencing the effective date of this contract and shall continue through the end of the twelve month period of service.
- I. An Invoice, suitable for payment, shall contain, but not limited to, the following information:
 - 1. Name of Contractor;
 - 2. Date of Invoice;
 - 3. Original Invoice Number (Consecutive numbers);
 - 4. Contract/purchase order number;
 - 5. Description of the item, or service actually provided;
 - 6. Period of performance of service or date item is provided;
 - 7. Signature, Name and Phone number of Company representative authorized to sign invoices;
 - 8. Name, phone number and Mailing address to whom any disputed invoices should be addressed;

Failure to submit Invoices which do not identify this information shall be returned without payment to the Contractor for correction.

J. Release of Information

- 1. The Contractor's organization shall clear with the Information Office listed below any public release of information on this contract. This information includes news stories, articles, sales literature, advertisements, radio-TV spots, etc.

2. The request for public release of information should be addressed by email to:
HanoiGSOProcurement@state.gov

3. Limited Use of Data and Information. Performance of this contract may require the Contractor to access and use data and information proprietary to the Government agency or agency personnel, or which is of such a nature that its dissemination or use, other than in performance of this contract would be adverse to the interests of the Government or others. The Contractor and Contractor personnel shall not divulge or release data or information developed or obtained in performance of this contract, until made public by the Government, except to authorized Government personnel or upon written approval of the Contracting Officer. The Contractor will not use, disclose, or reproduce proprietary data which bears a restrictive legend, other than as required in the performance of this contract. Nothing herein shall preclude the use of any data independently acquired by the Contractor without such limitations or prohibit an agreement at no costs to the Government between the Contractor and the data owner provides for greater rights to the Contractor.

K. Circuit Downtime and Credits

Credits shall be assessed against the Contractor in those instances where the circuit during any given month or year that fail to achieve and sustain the minimum acceptance standards stated above.

1. Definitions:

Circuit Availability Acceptance Level: Yearly Circuit Availability Acceptance Level is computed by 365 calendar days times 24 (hours per day) times 99.7% acceptance level equals 8,716.20 hours annum. ($365 \times 24 = 8760 \times 99.7\% = 8,733.72$). Monthly Circuit Availability is computed by the calendar days per month times 24 (hours per day) times 99.7% acceptance level (example: $31 \times 24 = 744 \times 99.7\% = 741.76$).

Downtime: That period of time when the circuit becomes non-operational or unusable for communication or transfer of data or failures to meet the minimum acceptance standards. The maximum cumulative Annual downtime that shall be acceptable for corrective or preventative maintenance is 26.28 hours ($8760 \times .3\%$). The maximum cumulative Monthly downtime that shall be acceptable for corrective or preventative maintenance shall be .3% of the total available hours for the month (example: $31 \times 24 = 744 \times .3\% = 2.23$ hours).

Period of Downtime: Downtime shall commence at the time first attempt for contact is made by the Government (or its representative) to the Contractor's Point of Contact and shall be annotated on the Remedy Ticket and shall continue until the circuit is returned into Service by the Government.

Downtime Credits: Monetary value returned to the Government for failure to meet the Circuit availability requirements. Downtime Credits shall be assessed based on cumulative downtime time with the minimum assessment being one hour. Downtime credit shall be equal to the hourly or daily rate (as applicable) as identified in the schedule in Section B. There are two (2) situations when circuit Downtime Credits can be accumulated:

- 1) Below Availability Level,
- 2) Extended Downtime.

2. Credit for Circuit Downtime by Situation

Below Availability Level: If the downtime accumulated for a circuit adds up to 26.28 (8760 x 0.3%) cumulative hours or more during any one contract year (365 calendar days) or depending on the number of hours for the month (example 744 x .3%) cumulative hours per month (example: 31 calendar day month) the Contractor shall grant a hourly credit to the Government for each hour of downtime. Each additional one hour increment or portion thereof will be assessed as an additional hour.

Extended Downtime Credit(s): Cumulative time of more than 18 hours but not greater than 24 hours for any one outage shall be assessed at a daily rate. Any increment of 24 hours beyond the initial 24 hours of any one outage shall be assessed at the standards for the hourly rate up to 12 hours, however between 12 and 24 hours the credit shall be assessed at the daily rate.

3. Exceptions to Cumulating of Downtime

Cumulating of circuit downtime shall include all unscheduled downtime deemed to be the responsibility of the Contractor, with the following exceptions:

a. When the failure to perform arises out of causes beyond the control and without the fault or negligence of the Contractor or Sub-contractor as defined in the Termination for Default clause in Section I of this contract.

b. Malfunction of equipment, frequency fading and interference, errors of commission and/or omission by the Contractor or Sub-contractor, and commercial power surges or failures are considered to be normal hazards of the industry and therefore do not qualify as causes beyond the control of the Contractor or Sub-contractor. The Contractor shall be charged with credits for all reported outages determined “no trouble found” or “came clear while testing” but which exceed 45 minutes.

The Contracting Officer shall make final determination as to whether downtime is the responsibility of the Contractor. If requested by the Contracting Officer, the Contractor shall

provide documentation to support claims of excusable downtime. For downtime determined to be the Contractor's responsibility, the Contracting Officer may elect to assess a credit for each instance of non-performance.

4. Payment Reduction for Downtime Credits

When Circuit Downtime credit(s) is owed to the Government, the total number of creditable hours shall be accumulated for the month and will be deducted from the payment due the Contractor in the month they accrued.

5. Trouble Escalation Procedure

a. The Government shall refer the problem to the carrier after performing tests as prescribed in the Trouble Analysis procedure. Obtain the name of the carrier test person and a carrier ticket number; record this information on the Government's Remedy Ticket.

b. After the trouble has been referred to the carrier for two (2) hours, recall the carrier for an update on the current trouble. Record the carrier's response, the name of the individual you talked with, and the carrier ticket number on the Remedy Ticket.

c. After the trouble has been referred to the carrier for four (4) hours, recall the carrier for an update on the current trouble. If the carrier's response is not satisfactory escalate the trouble to the carrier's management. Record the carrier's response, the name of the individual you talked with, and the carrier ticket number on the Remedy Ticket.

d. After the trouble has been referred to the Contractor for six (6) hours the COR shall escalate the trouble to the Contractor's manager; also notify IRM/IMO and the Contracting Officer and the STATE IRM/ISC Office. Record the contractor's response, the name of the individual you talked with, the Contractor ticket number, and the names of the IRM managers that were notified on the Remedy Ticket.

e. Continue to status the Contractor for the remainder of the outage or until you have received a problem resolved status.

6. Technological Refreshment

After contract award, the Government may; pursuant to FAR clause 52.212-4 - Contract Terms and Conditions –Commercial Items, paragraph (c), Changes; request changes within the scope of the contract. These changes may be required to improve performance or react to changes in technology.

The Contractor may propose for the Government's technological refreshment, substitutions or additions for any provided products or services that may become available as a result of technological improvements. The Government may, at any time during the term of this contract or any extensions thereof, modify the contract to acquire products which are similar to those under the contract and that the Contractor has, or has not, formally announced for marketing purposes. This action is considered to be within the scope of the contract. At the option of the Government, a demonstration of the substitute product may be required. The Government is under no obligation to modify the contract in response to the proposed additions or substitutions.

Such substitutions or additions may include any part of, or all of, a given product(s) provided that the following conditions are met and substantiated by documentation in the technological refreshment proposal:

- a. The proposed product(s) shall meet all of the technical specifications of this document and conform to the terms and conditions cited in the contract.
- b. The proposed product(s) shall have the capacity, performance, or functional characteristics equal to or greater than, the current product(s).
- c. The proposal shall discuss the impact on hardware, services, and delivery schedules. The cost of the changes not specifically addressed in the proposal shall be borne entirely by the Contractor.
- d. Contractor has the right to withdraw, in whole or in part, any technological refreshment proposal prior to acceptance by the Government. Contractor will use commercially reasonable efforts to ensure that prices for substitutions or additions are comparable to replaced or discontinued products. If a technological refreshment proposal is accepted and made a part of this contract, an equitable adjustment, increasing or decreasing the contract price, may be required and any other affected provisions of this contract shall be made in accordance with FAR clause 52.212-4, paragraph (c), Changes, and other applicable clauses of the contract.

7. QUALITY ASSURANCE AND SURVEILLANCE PLAN (QASP)

This plan provides an effective method to promote satisfactory contractor performance. The QASP provides a method for the Contracting Officer's Representative (COR) to monitor Contractor performance, advise the Contractor of unsatisfactory performance, and notify the Contracting Officer of continued unsatisfactory performance. The Contractor, not the Government, is responsible for management and quality control to meet the terms of the contract. The role of the Government is to monitor quality to ensure that contract standards are achieved.

Performance Objective	Scope of Work Para	Performance Threshold
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<u>Services.</u> Performs all internet services and point-to-point data connections set forth in the scope of work.	1. thru 6.	All required services are performed and no more than one (1) customer complaint is received per month.
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III. CONTRACT CLAUSES

System updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in agency solicitations. Examples include 52.222-25, Affirmative Action Compliance, and paragraph (d) of 52.212-3, Offeror Representations and Certifications—Commercial Products and Commercial Services, include 52.223-22, Public Disclosure of Greenhouse Gas Emissions and Reduction Goals—Representation, and paragraph (t) of 52.212-3, Offeror Representations and Certifications—Commercial Products and Commercial Services. Contracting officers will not consider these representations when making award decisions or enforce requirements. Agencies will not consider or use these representations. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

52.212-4 CONTRACT TERMS AND CONDITIONS – COMMERCIAL ITEMS (NOV 2023) IS INCORPORATED BY REFERENCE. (SEE SF-1449, BLOCK 27A)

52.212-5 Contract Terms and Conditions Required to Implement Statutes or Executive Orders—Commercial Products and Commercial Services (JAN 2025) (DEVIATION FEB 2025)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015).

(5) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).

(6) 52.233-3, Protest After Award (Aug 1996) (31 U.S.C. 3553).

(7) 52.233-4, Applicable Law for Breach of Contract Claim (Oct 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

 (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (Jun 2020), with *Alternate I* (Nov 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).

 (2) 52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509)).

 (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (Jun 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

 X (4) 52.203-17, Contractor Employee Whistleblower Rights (Nov 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community—see FAR 3.900(a).

 X (5) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (Jun 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).

 (6) [Reserved].

 (7) 52.204-14, Service Contract Reporting Requirements (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

 (8) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

 X (9) 52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

 (10) 52.204-28, Federal Acquisition Supply Chain Security Act Orders—Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (Dec 2023) (Pub. L. 115–390, title II).

 X (11)

(i) 52.204-30, Federal Acquisition Supply Chain Security Act Orders—Prohibition. (Dec 2023) (Pub. L. 115–390, title II).

__ (ii) Alternate I (Dec 2023) of 52.204-30.

X (12) 52.209-6, Protecting the Government’s Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment. (Nov 2021) (31 U.S.C. 6101 note).

__ (13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (Oct 2018) (41 U.S.C. 2313).

__ (14) [Reserved].

__ (15) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (Oct 2022) (15 U.S.C. 657a).

__ (16) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Oct 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

__ (17) [Reserved]

__ (18)

(i) 52.219-6, Notice of Total Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).

__ (ii) Alternate I (Mar 2020) of 52.219-6.

__ (19)

(i) 52.219-7, Notice of Partial Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).

__ (ii) Alternate I (Mar 2020) of 52.219-7.

__ (20) 52.219-8, Utilization of Small Business Concerns (Feb 2024) (15 U.S.C. 637(d)(2) and (3)).

__ (21)

(i) 52.219-9, Small Business Subcontracting Plan (Sep 2023) (15 U.S.C. 637(d)(4)).

__ (ii) Alternate I (Nov 2016) of 52.219-9.

__ (iii) Alternate II (Nov 2016) of 52.219-9.

__ (iv) Alternate III (Jun 2020) of 52.219-9.

__ (v) Alternate IV (Sep 2023) of 52.219-9.

__(22)

(i) 52.219-13, Notice of Set-Aside of Orders (Mar 2020) (15 U.S.C. 644(r)).

__(ii) Alternate I (Mar 2020) of 52.219-13.

__(23) 52.219-14, Limitations on Subcontracting (Oct 2022) (15 U.S.C. 657s).

__(24) 52.219-16, Liquidated Damages—Subcontracting Plan (Sep 2021) (15 U.S.C. 637(d)(4)(F)(i)).

__(25) 52.219-27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (Feb 2024) (15 U.S.C. 657f).

__(26)

(i) 52.219-28, Post Award Small Business Program Rerepresentation (Feb 2024) (15 U.S.C. 632(a)(2)).

__(ii) Alternate I (Mar 2020) of 52.219-28.

__(27) 52.219-29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (Oct 2022) (15 U.S.C. 637(m)).

__(28) 52.219-30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (Oct 2022) (15 U.S.C. 637(m)).

__(29) 52.219-32, Orders Issued Directly Under Small Business Reserves (Mar 2020) (15 U.S.C. 644(r)).

__(30) 52.219-33, Nonmanufacturer Rule (Sep 2021) (15 U.S.C. 637(a)(17)).

__(31) 52.222-3, Convict Labor (Jun 2003) (E.O.11755).

__(32) 52.222-19, Child Labor-Cooperation with Authorities and Remedies (Feb 2024).

__(33) 52.222-21, Prohibition of Segregated Facilities (Apr 2015).

__(34)

(i) 52.222-26, Equal Opportunity (Sep 2016) (E.O.11246).

__(ii) Alternate I (Feb 1999) of 52.222-26.

__(35)

(i) 52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).

___(ii) Alternate I (Jul 2014) of 52.222-35.

___(36)

(i) 52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).

___(ii) Alternate I (Jul 2014) of 52.222-36.

___(37) 52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).

___(38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496).

X(39)

(i) 52.222-50, Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O. 13627).

___(ii) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

___(40) 52.222-54, Employment Eligibility Verification (May 2022) (Executive Order 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)

___(41)

(i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA–Designated Items (May 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

___(ii) Alternate I (May 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

___(42) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (May 2024) (42 U.S.C. 7671, *et seq.*).

___(43) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (May 2024) (42 U.S.C. 7671, *et seq.*).

___(44) 52.223-20, Aerosols (May 2024) (42 U.S.C. 7671, *et seq.*).

___(45) 52.223-21, Foams (May 2024) (42 U.S.C. 7671, *et seq.*).

___(46) 52.223-23, Sustainable Products and Services (May 2024) (E.O. 14057, 7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 7671).

X(47)

(i) 52.224-3 Privacy Training (Jan 2017) (5 U.S.C. 552 a).

__ (ii) Alternate I (Jan 2017) of 52.224-3.

__ (48)

(i) 52.225-1, Buy American-Supplies (Oct 2022) (41 U.S.C. chapter 83).

__ (ii) Alternate I (Oct 2022) of 52.225-1.

__ (49)

(i) 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act (NOV 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43.

__ (ii) Alternate I [Reserved].

__ (iii) Alternate II (Jan 2025) of 52.225-3.

__ (iv) Alternate III (Feb 2024) of 52.225-3.

__ (v) Alternate IV (Oct 2022) of 52.225-3.

__ (50) 52.225-5, Trade Agreements (NOV 2023) (19 U.S.C. 2501, *et seq.*, 19 U.S.C. 3301 note).

X (51) 52.225-13, Restrictions on Certain Foreign Purchases (Feb 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).

__ (52) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

__ (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (Nov 2007) (42 U.S.C. 5150).

__ (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (Nov 2007) (42 U.S.C. 5150).

X (55) 52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024) (E.O. 13513).

__ (56) 52.229-12, Tax on Certain Foreign Procurements (Feb 2021).

X (57) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

__ (58) 52.232-30, Installment Payments for Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

X (59) 52.232-33, Payment by Electronic Funds Transfer-System for Award Management (Oct2018) (31 U.S.C. 3332).

__ (60) 52.232-34, Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013) (31 U.S.C. 3332).

__ (61) 52.232-36, Payment by Third Party (May 2014) (31 U.S.C. 3332).

X (62) 52.239-1, Privacy or Security Safeguards (Aug 1996) (5 U.S.C. 552a).

X (63) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

__ (64) 52.242-5, Payments to Small Business Subcontractors (Jan 2017) (15 U.S.C. 637(d)(13)).

__ (65)

(i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).

__ (ii) Alternate I (Apr 2003) of 52.247-64.

__ (iii) Alternate II (Nov 2021) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[*Contracting Officer check as appropriate.*]

__ (1) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).

__ (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

__ (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (Aug 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

__ (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014) (29U.S.C.206 and 41 U.S.C. chapter 67).

__ (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

__ (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).

__ (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).

__ (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).

__ (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792).

__ (10) 52.247-69, Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (Jan 2025) (49 U.S.C. 40118(g)).

(d) *Comptroller General Examination of Record*. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records-Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e)

(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this

paragraph (e)(1), in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509).

(ii) 52.203-17, Contractor Employee Whistleblower Rights (Nov 2023) (41 U.S.C. 4712).

(iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(v) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(vi) 52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

(vii)

(A) 52.204-30, Federal Acquisition Supply Chain Security Act Orders—Prohibition. (Dec 2023) (Pub. L. 115-390, title II).

(B) Alternate I (Dec 2023) of 52.204-30.

(viii) 52.219-8, Utilization of Small Business Concerns (Feb 2024) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(ix) 52.222-21, Prohibition of Segregated Facilities (Apr 2015).

(x) 52.222-26, Equal Opportunity (Sep 2016) (E.O.11246).

(xi) 52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).

(xii) 52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).

(xiii) 52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).

(xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(xv) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).

(xvi)

(A) 52.222-50, Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O. 13627).

(B) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

(xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

(xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).

(xix) 52.222-54, Employment Eligibility Verification (May 2022) (E.O. 12989).

(xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).

(xxi) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).

(xxii)

(A) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).

(B) Alternate I (Jan 2017) of 52.224-3.

(xxiii) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxv) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232-40.

(xxvi) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

(xxvii) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

52.229-12 TAX ON CERTAIN FOREIGN PROCUREMENTS – NOTICE AND REPRESENTATIONS (FEB 2021)

ADDENDUM TO CONTRACT CLAUSES

FAR AND DOSAR CLAUSES NOT PRESCRIBED IN PART 12

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. In addition, the full text of a clause may be accessed electronically at: [Acquisition.gov](https://www.acquisition.gov) this address is subject to change.

If the Federal Acquisition Regulation (FAR) is not available at the location indicated above, use the Department of State Acquisition website at [e-CFR](https://e-cfr.gov) to see the links to the FAR. You may also use an Internet “search engine” (for example, Google, Yahoo or Excite) to obtain the latest location of the most current FAR.

CYBERSECURITY SUPPLY CHAIN RISK MANAGEMENT REQUIREMENTS (AUG 2024)

(a) Definitions. As used in this clause:

Covered article - The term "covered article" includes-

(1) "Information and Communications technology" which is an industry term for information technology that is involved in integrating telecommunications (e.g., telephone lines and wireless signals) and computers to enable users to access, store, manipulate, transmit, and receive digital information. This includes software, software as a service, digital and data services, and hardware components that support information creation, storage, transfer, and management, like computers and smartphones.

(2) "Telecommunications Equipment", which means equipment, other than customer premises equipment, used by a carrier to provide telecommunications services, and includes software integral to such equipment (including upgrades).

(3) "Telecommunications Service", which means the offering of telecommunications for a fee directly to the public, or to such classes of users as to be effectively available directly to the

public, regardless of the facilities used.

(4) “Cybersecurity Supply Chain Risk”, which means the risk that a person may sabotage, maliciously introduce unwanted function, extract data, or otherwise manipulate the design, integrity, manufacturing, production, distribution, installation, operation, maintenance, disposition, or retirement of covered articles to surveil, deny, disrupt, or otherwise manipulate the function, use, or operation of the covered articles or information stored or transmitted on the covered articles.

(5) “Incident,” which means, per the Federal Information Security Modernization Act of 2014, “an occurrence that (A) actually or imminently jeopardizes, without lawful authority, the integrity, confidentiality, or availability of information or an information system; or (B) constitutes a violation or imminent threat of violation of law, security policies, security procedures, or acceptable use policies.”

(6) “Vulnerability,” means any weakness in an information system, system security procedures, internal controls, or implementation that could be exploited or triggered by a threat source.

(b) *Contractor Cybersecurity Supply Chain Risk Management Responsibilities.* The Contractor must regularly identify, assess, monitor, and mitigate cybersecurity supply chain risks when providing covered articles or services to the Government. The Contractor shall maintain artifacts (i.e., any byproduct of hardware or software development that helps describe the architecture, design, and function of that hardware or software) that document its compliance with this paragraph and shall provide these artifacts to the Government within 48 hours of request, which may be redacted to remove sensitive proprietary information.

(c) *Supporting Government Cybersecurity Supply Chain Risk Assessments.* No more than an estimated once per year, the Contractor must provide any requested information related to its supply chain within 10 business days except information that is protected by a non-disclosure agreement with its customers (e.g., another federal agency).

(d) *Novation Agreement Notice.* FAR 42.1203 require Government approval of novation agreements. For proposed novation agreements for this contract, the Contractor shall provide any information requested by the Government regarding the proposed successor’s identity and information regarding its supply chain.

(e) *Notification procedures for cybersecurity supply chain incidents.* When an incident occurs, the Contractor must contact the CO or their designee within 72 hours of the incident.

(f) *Subcontracts.* The Contractor shall insert the substance of this clause in all subcontracts and other contractual instruments in support of this contract.

(g) *Attestation following Major Version Change.* For software provided under the contract that required an approved Secure Software Development Attestation Form, the responses on this form apply to the software’s major version changes (e.g., using a semantic versioning schema of Major, Minor, Patch, the software version number goes from 2.5 to 3.0) unless the Contractor otherwise notifies the Contracting Officer that the form is no longer valid. This notification to the Contracting Officer must be submitted within 15 days of the major version change and must

include a new completed and signed Secure Software Development Attestation Form.

(end of clause)

THE FOLLOWING FEDERAL ACQUISITION REGULATIONS (FAR) CLAUSES ARE INCORPORATED BY REFERENCE:

<u>CLAUSE</u>	<u>TITLE AND DATE</u>
52.203-17	CONTRACTOR EMPLOYEE WHISTLEBLOWER RIGHTS (NOV 2023)
52.204-9 (JAN 2011)	PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL
52.204-13	SYSTEM FOR AWARD MANAGEMENT MAINTENANCE (OCT 2018)
52.204-18	COMMERCIAL AND GOVERNMENT ENTITY CODE MAINTENANCE (AUG 2020)
52.204-25	PROHIBITION ON CONTRACTING FOR CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021)
52.204-27	PROHIBITION ON A BYTEDANCE COVERED APPLICATION (JUN 2023)
52.222-19 (JAN 2025)	CHILD LABOR-COOPERATION WITH AUTHORITIES AND REMEDIES
52.228-4	WORKER'S COMPENSATION AND WAR-HAZARD INSURANCE OVERSEAS (APRIL 1984)
52.228-5	INSURANCE - WORK ON A GOVERNMENT INSTALLATION (JAN 1997)
52.229-6	TAXES-FOREIGN FIXED-PRICE CONTRACTS (FEB 2013)
52.232-39	UNENFORCEABILITY OF UNAUTHORIZED OBLIGATIONS (JUNE 2013)
52.232-40	PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS (MAR 2023)
52.244-6	SUBCONTRACTS FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (JAN 2025) (DEVIATION FEB 2025)
<u>652.232-70</u> <u>(AUG 1999)</u>	<u>PAYMENT SCHEDULE AND INVOICE SUBMISSION (FIXED-PRICE)</u>

(a) General. The Government shall pay the contractor as full compensation for all work required, performed, and accepted under this contract the firm fixed-price stated in this contract.

(b) Invoice Submission. The contractor shall submit invoices in an original to the office identified in Block 18b of the SF-1449. To constitute a proper invoice, the invoice shall include all the items required by FAR 32.905(e).

Financial Management Office
US Embassy Hanoi, Vietnam

The contractor shall show Value Added Tax (VAT) as a separate item on invoices submitted for payment, if applicable.

(c) Contractor Remittance Address. The Government will make payment to the contractor's address stated on the cover page of this contract, unless a separate remittance address is shown below:

652.242-73 AUTHORIZATION AND PERFORMANCE (AUG 1999)

(a) The contractor warrants the following:

(1) That it has obtained authorization to operate and do business in the country or countries in which this contract will be performed;

(2) That it has obtained all necessary licenses and permits required to perform this contract; and,

(3) That it shall comply fully with all laws, decrees, labor standards, and regulations of said country or countries during the performance of this contract.

(b) If the party actually performing the work will be a subcontractor or joint venture partner, then such subcontractor or joint venture partner agrees to the requirements of paragraph (a) of this clause.

652.243-70 NOTICES (AUG 1999)

Any notice or request relating to this contract given by either party to the other shall be in writing. Said notice or request shall be mailed or delivered by hand to the other party at the

address provided in the schedule of the contract. All modifications to the contract must be made in writing by the Contracting Officer.

IV. SOLICITATION PROVISIONS

52.212-1 INSTRUCTIONS TO OFFERORS -- COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (MAR 2023) IS INCORPORATED BY REFERENCE

ADDENDUM TO 52.212-1

Cybersecurity Supply Chain Risk Management (C-SCRM) Forms

The offeror shall include in its offer C-SCRM Questionnaire. In lieu of a completed C-SCRM Questionnaire, the vendor may submit a third party authorizing official conducted assessment, such as ISO 27001, ISO 9000, SOC II, or FEDRAMP authorization.

If the offeror is providing any software, the offeror must complete State Department Secure Software Development Attestation Form (or another agency's equivalent form), and either include it in the offer, submit it to the [CISA Repository for Software Attestations and Artifacts](#) website and indicate in its offer that the form is on this website, or upload the form to a public website and provide a link to the form in the offer. Both documents must be completed in accordance with each attachment's instructions. Failure to follow the attachment's instructions may result in rejection of the offer.

Instructions to Offeror. Each offer must consist of the following:

1. Name of a Project Manager (or other liaison to the U.S. Embassy/Consulate) who understands written and spoken English;
2. List of clients over the past 2 years, demonstrating prior experience with relevant past performance information and references (provide dates of contracts, places of performance, value of contracts, contact names, telephone and fax numbers and email addresses). If the offeror has not performed comparable services in Vietnam then the offeror shall provide its international experience. Offerors are advised that the past performance information requested above may be discussed with the client's contact person. In addition, the client's contact person may be asked to comment on the offeror's:
 - Quality of services provided under the contract;
 - Compliance with contract terms and conditions;
 - Effectiveness of management;

- Willingness to cooperate with and assist the customer in routine matters, and when confronted by unexpected difficulties; and
- Business integrity / business conduct.

The Government will use past performance information primarily to assess an offeror's capability to meet the solicitation performance requirements, including the relevance and successful performance of the offeror's work experience. The Government may also use this data to evaluate the credibility of the offeror's proposal. In addition, the Contracting Officer may use past performance information in making a determination of responsibility.

3. Evidence that the offeror/quoter operates an established business with a permanent address and telephone listing in Vietnam or plans to establish an office within 30 days of contract award;
4. The offeror shall provide proof of SAM registration to include the SAM UEI number.
5. Evidence that the offeror/quoter can provide the necessary personnel, equipment, and financial resources needed to perform the work.
6. The offeror shall address its plan to obtain all licenses and permits required by local law (see DOSAR 652.242-73 in Section 2). If offeror already possesses the locally required licenses and permits, a copy shall be provided.
7. The offeror's strategic plan for internet lease line services to include but not limited to:
 - (a) A work plan taking into account all work elements in Section 1, Performance Work Statement.
 - (b) Identify types and quantities of equipment, supplies and materials required for performance of services under this contract. Identify if the offeror already possesses the listed items and their condition for suitability and if not already possessed or inadequate for use how and when the items will be obtained;
 - (c) Plan of ensuring quality of services including but not limited to contract administration and oversight; and
 - (d) (1) If insurance is required by the solicitation, a copy of the Certificate of Insurance(s), **or** (2) a statement that the Contractor will get the required insurance, and the name of the insurance provider to be used.
8. Evidence that the Contractor has a recovery plan in the event of an emergency or disaster.

52.237-1 SITE VISIT (APR 1984)

The site visit will be held within the period May 05 - 07, 2026 at the service required locations to inform quoters of all the conditions and limitations applied to the contract. All prospective quoters who have received the solicitation package are invited to attend. List of participants (max 02 participants/quoter with full names, ID and cellphone numbers) must be submitted before 12h00 PM local noon time May 04, 2025 to Vu Ngoc at email VuNH@state.gov , and Bui Huyen Trang at BuiTH@state.gov for necessary security registration. Participants will be informed about time and location upon registration. Questions regarding solicitation requirements are to be submitted to Bui Huyen Trang at BuiTH@state.gov on or before May 08, 2025 at 12h00 PM local noon time. Questions submitted after this time will not be accepted and answered.

The following DOSAR provision(s) is/are provided in full text:

652.206-70 ADVOCATE FOR COMPETITION/OMBUDSMAN (FEB 2015)

(a) The Department of State's Advocate for Competition is responsible for assisting industry in removing restrictive requirements from Department of State solicitations and removing barriers to full and open competition and use of commercial items. If such a solicitation is considered competitively restrictive or does not appear properly conducive to competition and commercial practices, potential offerors are encouraged first to contact the contracting office for the solicitation. If concerns remain unresolved, contact:

- (1) For solicitations issued by the Office of Acquisition Management (A/GA/AMD) or a Regional Procurement Support Office, the A/GA/AMD Advocate for Competition, at AQMCompetitionAdvocate@state.gov.
- (2) For all others, the Department of State Advocate for Competition at cat@state.gov.

(b) The Department of State's Acquisition Ombudsman has been appointed to hear concerns from potential offerors and contractors during the pre-award and post-award phases of this acquisition. The role of the ombudsman is not to diminish the authority of the contracting officer, the Technical Evaluation Panel or Source Evaluation Board, or the selection official. The purpose of the ombudsman is to facilitate the communication of concerns, issues, disagreements, and recommendations of interested parties to the appropriate Government personnel, and work to resolve them. When requested and appropriate, the ombudsman will maintain strict confidentiality as to the source of the concern. The ombudsman does not participate in the evaluation of proposals, the source selection process, or the adjudication of formal contract disputes. Interested parties are invited to contact the contracting activity ombudsman, Management Officer, at + 84 24 38505000. For an American Embassy or overseas post, refer to the numbers below for the Department Acquisition Ombudsman. Concerns, issues,

disagreements, and recommendations which cannot be resolved at a contracting activity level may be referred to the Department of State Acquisition Ombudsman at (703) 516-1696 or write to: Department of State, Acquisition Ombudsman, Office of Global Acquisitions (A/GA), Suite 1060, SA-15, Washington, DC 20520.

(End of provision)

Additional Instructions:

A. Separate charges, in any form, are not solicited. For example, proposals containing any charges for failure of the Government to exercise any options will be rejected. The Government shall not be obligated to pay any charges other than the contract price, under Article 34 of the Vienna Convention on Diplomatic Relations, from the Special Access Surcharges or foreign taxes, including Value Added Taxes.

B. Unless otherwise provided in this solicitation, the definitions for all telecommunications terms used herein are contained in Federal Standard 1037A (FED-STD-1037A), Glossary of Telecommunication Terms, dated June 26, 1986.

C. The price offered shall include costs and profit as proposed by the offeror for performing all the requirements of the completed contract as set forth in this solicitation. The costs and profit should take into consideration magnitude and realism (from both a technical and cost perspective).

D. If any services are to be offered at no cost to the Department of State, the bidder shall so indicate by entering either "No Charge" or "N/C" in the space provided in Section B for that item. Failure to enter either a price or one of the no charge notations, i.e., leaving the space blank, may render the bid non-responsive, additionally entering "Not Separately Priced" or "NSP" is not acceptable.

E. Each CLIN shall be separately priced. Failure to enter either a price or one of the no charge notations, i.e., leaving the space blank, may render the quotation unacceptable, additionally entering "Not Separately Priced" or "NSP" is not acceptable.

F. Acceptance of Quotations. The Government reserves the right to reject, as unacceptable, quotations deleting or altering technical requirements which are considered by the Government to be beyond the state of the art or impossible of attainment.

V. EVALUATION FACTORS

The Government intends to establish a single contract/purchase order award for services to be provided in 12 months, resulting from this solicitation to the responsible contractor whose

quotation conforms to the solicitation and represents the best value to the Government, price and other factors considered utilizing FAR 13 Comparative Evaluation.

This selection process will utilize FAR 13 procedures.

After preliminary consideration of all offers, the Department will no longer consider offers that do not meet basic standards to be eligible for award. The offers that remain will be subject to a comparative evaluation.

The preliminary evaluation process shall include the following:

COMPLIANCE REVIEW. The Government will perform an initial review of proposals/quotations received to determine completeness and compliance with the terms of the solicitation to include **CYBERSECURITY SUPPLY CHAIN RISK MANAGEMENT (C-SCRM) Go/No-Go Evaluation Factor**. The Government may reject as unacceptable proposals/quotations that do not conform to the solicitation. Offers must provide evidence that minimum technical requirements as expressed in the statement of work, section 2 are met as a condition to entering into the comparative evaluation phase of the acquisition.

C-SCRM Go/No-Go Evaluation Factor

This factor is evaluated on a go/no-go basis. The Government will evaluate whether the submitted C-SCRM Questionnaire and C-SCRM Software Producer Attestation Form meet the definition for the “Go” or “No-Go” ratings for this factor. The “Go” and “No-Go” ratings and their definitions are as follows:

RATING	RATING DEFINITION
GO	The proposal meets the criteria in the following two (2) paragraphs. The C-SCRM Questionnaire contains both of the following: (1) C-SCRM Questionnaire instructions are completed; and (2) contains “Yes” answers for all questions in Sections 2 and 3 of the questionnaire; or the vendor has submitted a third party authorizing official conducted assessment such as, ISO 27001, ISO 9000, SOC II, or FEDRAMP authorization. For suppliers offering any software, the State Department Secure Software Development Attestation Form or another federal agency’s equivalent form is signed and submitted in accordance with the form’s instructions. In lieu of submitting the State Department Secure Software Development Attestation Form, the offeror provides the information required by section “Additional Information” of the form and the Government finds that this information satisfactory mitigates associated risks.

NO-GO	The proposal does not meet one (1) or more of the criteria in the following two (2) paragraphs. The C-SCRM Questionnaire contains both of the following: (1) C-SCRM Questionnaire instructions are completed; and (2) contains Yes answers for all questions in Sections 2 and 3 of the questionnaire; or the vendor has submitted a third party authorizing official conducted assessment such as, ISO 27001, ISO 9000, SOC II, or FEDRAMP authorization. For suppliers offering any software, the State Department Secure Software Development Attestation Form (or another federal agency's equivalent form) is signed and submitted in accordance with the form's instructions. In lieu of submitting the State Department Secure Software Development Attestation Form, the offeror provides the information required by section "Additional Information" of the form and the Government finds that this information satisfactory mitigates associated risks.
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Comparative Evaluation

A comparative evaluation will be performed in accordance with FAR 13.106-2(b)(3). A comparative evaluation is defined as the act of comparing two or more offers in response to the RFQ. The item-by-item comparison is performed by comparing each offer to directly to one another to determine which provides the best value to the Government utilizing **technical, past performance criteria and price** as described below. **This is NOT a low price technically acceptable or trade-off process. This solicitation neither requires nor prohibits the selection of the lowest priced acceptable offer.**

Evaluation Criteria

Technical: Technical will be evaluated on the basis of a direct comparison to other offers to discern if there is any kind of technical quality superiority that would support an award to a higher priced offer. Technical discriminators by requirement may include:

MINIMUM TECHNICAL REQUIREMENTS	Non-Price/Quality Discriminators
Speed - The bandwidth available across all lines of service (OpenNet VPN, OpenNet Extension, Dedicated Internet Network, Internet) as established in the solicitation.	Bandwidth in excess of required minimums
Number of IP Addresses	Number of addresses in excess of required minimums

Mode of Transportation	Extent of fiber optics interface connectors usage
Line Quality	Evidence of reliability in achieving a. Packet Loss $\leq .5\%$ b. Availability of 99.9%.

Past Performance: Past performance will be evaluated on the basis of a direct comparison to other offers to discern if there is any significant past performance superiority that would support an award to a higher priced offer. Past performance as a discriminator may be appropriate where based on the offeror's performance record, the Government has a high expectation that the offeror will successfully perform the required effort.

Price will be evaluated to ensure the proposed price is fair and reasonable. The price will be determined by multiplying the offered prices times the estimated quantities in "Prices - Continuation of SF-1449, block 23", and arriving at a grand total, including all options. The Government reserves the right to reject proposals that are unreasonably low or high in price.

RESPONSIBILITY DETERMINATION. The Government will determine contractor responsibility by analyzing whether the apparent successful offeror complies with the requirements of FAR 9.1, including:

- Adequate financial resources or the ability to obtain them;
- Ability to comply with the required performance period, taking into consideration all existing commercial and governmental business commitments;
- Satisfactory record of integrity and business ethics;
- Necessary organization, experience, and skills or the ability to obtain them;
- Necessary equipment and facilities or the ability to obtain them; and
- Be otherwise qualified and eligible to receive an award under applicable laws and regulations.

ADDENDUM TO EVALUATION FACTORS FAR AND DOSAR PROVISION(S) NOT PRESCRIBED IN PART 12

52.225-17 EVALUATION OF FOREIGN CURRENCY OFFERS (FEB 2000)

If the Government receives offers in more than one currency, the Government will evaluate offers by converting the foreign currency to United States currency using the exchange rate used by the Embassy in effect as follows:

- (a) For acquisitions conducted using sealed bidding procedures, on the date of bid opening.
- (b) For acquisitions conducted using negotiation procedures—

- (1) On the date specified for receipt of offers if award is based on initial offers; otherwise
- (2) On the date specified for receipt of proposal revisions.

VI. OTHER PROCUREMENT TERMS AND CONDITIONS

1. The Offeror must be willing to accept Purchase Order (PO) from US Embassy Hanoi.
2. Vendor's contract is not accepted and signed. Deposit is not applicable.
3. All items bid must meet or exceed specifications listed.
4. Proposals must be in local currency VND, firm fixed price to include tax, delivery fee and any other anticipated charges.
5. The supplies/services must be delivered to the US Embassy office in Hanoi, Vietnam.
6. Selected vendor must be able to accept monthly or quarterly payment through Electronic Fund Transfer (EFT) within 30 (thirty) days after the services are delivered completely and the original correct invoice is received.
7. Any cancellations after PO acceptance, only services rendered will be paid.
8. For the U.S. Government's rule and regulation reference, please read the attached Commercial Clauses document.
9. Offeror's active registration in the System for Award Management (SAM) with Unique Entity Identifier number is required as instructed in Invitation Letter.
10. Offeror must include completed CYBERSECURITY SUPPLY CHAIN RISK MANAGEMENT (C-SCRM) C- SCRM Questionnaire and C-SCRM Software Producer Attestation Form, and other forms as instructed in Invitation Letter.

Please send your quotation no later than 17:00PM on May 20, 2026 local time by email to:

Ms. Bui Huyen Trang
U.S. Embassy Contracting Unit
Email: Buith@state.gov

Requests for information need to be made by e-mail in English to the email addresses listed above. Do not request information by telephone.

--- END OF STATEMENT OF WORK--